

state violations of criminal statutes or civil rights protections. To the extent Plaintiff's first nine causes of action state violations of criminal statutes, Plaintiff lacks standing to enforce those violations, as he is a private citizen and not a federal or state prosecutor. Further, all fifteen of these claims fail because Defendant's undisputed material facts establish that Officer Badr did not get inappropriately close to Plaintiff during her investigation, nor did she touch him. (Defendant's Undisputed Material Facts #10.) Review of the body camera footage of the incident confirms Defendant's undisputed material facts.

Plaintiff's remaining four causes of action assert deprivation of rights related to public accommodations and federally funded programs. These causes of action appear to concern a dispute Plaintiff has with EconoLodge hotels and do not implicate Defendant. Defendant did not deprive Plaintiff of rights related to public accommodations or federally funded programs.

Defendant establishes Plaintiff's inability to prove any of his causes of action. Plaintiff raises no triable issue of material fact in response. Plaintiff's evidence in response consists of letters and declarations from Plaintiff stating Officer Badr's alleged misconduct in court documents and communications with state and federal agencies. The court finds that Plaintiff's evidence does not contradict Defendant's video evidence of the investigation.

**Conclusion.** Defendant's motion for summary judgment is granted.

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**MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.**  
**Case No. CU24-06535**

Motion by Defendants to Strike Plaintiffs First Amended Complaint

### TENTATIVE RULING

C.C.P. §436(a) authorizes the court to "[s]trike out any irrelevant, false or improper matter inserted in any pleading" on a noticed motion.

C.C.P. §436(b) authorizes the court to "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

A motion to strike thus can be filed to strike an entire pleading, or just parts of it, the latter like a scalpel to remove specific paragraphs, sentences, phrases or words. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:156, p. 77 ["a motion to strike can be used to attack . . . even single words or phrases"].

If filed to strike just parts of a complaint, CRC 3.1322(a) requires a motion to strike a part of a complaint to “quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense”.

Defendants did not identify any portions of Plaintiff’s first amended complaint as intended targets of their motion to strike. Instead, they sought to strike the entirety of the first amended complaint.

Motions to strike the entirety of a pleading are typically filed against a complaint filed late, missing a necessary signature or certification, or without having obtained necessary leave of court. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:174, pp. 80-81.

Defendants argued that the entire first amended complaint fails to constitute “a statement of the facts constituting the cause of action, in ordinary and concise language”, as required by C.C.P. §425.10(a)(1).

Plaintiff’s first amended complaint is anything but concise. However, it does contain in clear language allegations that Plaintiff never agreed to pay 27.2% annual interest on the financed part of the vehicle purchase, and that his signature on the contract calling for such interest was forged. The court has already found on the demurrer that this states a viable cause of action (not for “fraud”, as identified in the first amended complaint, but for forgery).

While unnecessary allegations can be stricken from a complaint, “matter that is essential to a cause of action should not be struck and it is error to do so.” Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4<sup>th</sup> 1256, 1281.

The court therefore denies Defendants’ motion to strike the entirety of Plaintiff’s first amended complaint.

Defendants have 10 days leave to file an answer to the first amended complaint.

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**MATTHEW NITTINGER; ET AL. vs. DANIEL WAYNE SAUVAGEAU; ET AL.**  
**Case No. CU25-00844**

Defendants K. HENGL, R. HENGL, and SUPERIOR CUSTOM CONSTRUCTION,  
LLC’s Motion for Leave to File Cross Complaint

### TENTATIVE RULING

The motion for leave to file cross complaint filed by Defendant’s K. Hengl, R. Hengl, and Superior Custom Construction, LLC is GRANTED.